

-

File No.: EXP202309454

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 24, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. (hereinafter, SCHOOL FITNESS), through the agreement that is transcribed:

<<

File No.: EXP202309454

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On May 30, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. with NIF B82887514 (hereinafter, SCHOOL FITNESS).

The facts brought to the attention of this authority were as follows:

(...) the complainant states that they are a client of HOLIDAY FIT TRES CANTOS, a gym, where the instructors who teach classes in its facilities record the sessions of said classes without informing or obtaining the appropriate consents from the participants.

They assert that on May 9, 2023, they noticed the presence of a mobile phone next to the window of one of the rooms, in what they consider a location chosen by the instructor to record the class being taught.

They indicate that they have repeatedly opposed the collection and use of their image in the classes they participate in, but their objections have been ignored. They have also raised the issue via email to the entity being complained about, which informed them of a general clause in the entity's contracts stating that by formalizing the corresponding contract for the use of the entity's facilities, the client authorizes the recording of the client in the facilities; considering (...) the complainant that this circumstance, without including the possibility of opposition, is contrary to data protection regulations.

Along with the complaint, they provided the following documentation:

- Copy of the contract signed between (...) the complainant and the entity SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L., dated September 1, 2016, valid for 365 days. The copy contains two signatures, that of "The member" ((...)) complainant), corresponding to an alphanumeric membership code ((...)), and that of SCHOOL FITNESS with a handwritten signature.

In the section "General Conditions," the following clause regarding the protection of personal data appears:

"Eleventh.- According to the provisions of Organic Law 15/1999 on the Protection of Personal Data (LOPD), the data provided by the member, including those corresponding to the biometric pattern, will be incorporated into the file "clients and suppliers" whose owner is SCHOOL FITNESS HOLIDAY FRANCHISING, S.L.U., with address in Las Rozas (28290) Las Rozas, Madrid, Calle Rozabella No. 6, Parque Europa Empresarial.

For this purpose, it is considered that the data provided by the member is accurate.

The biometric pattern data will be used as confirmation for the acceptance of the contract as well as for access to the gym. The biometric reading does not imply the recording of the fingerprint, and the data obtained cannot be treated as a fingerprint in any case. The purpose of this file is to comply with the provision of the services contracted by the member, as well as commercial management and the sending or communication of advertising or commercial information or satisfaction surveys by any means. If the member does not wish to receive advertising or commercial information, they must check the corresponding box for acceptance of the contract.

I do not wish to receive advertising.

□

(...).

(...)

- Copy of the contract signed between (...) the complainant and the entity HOLIDAY FIT TRES CANTOS, S.L. (hereinafter, HOLIDAY FIT), dated October 13, 2022, valid for 12 months. The copy contains two signatures, that of "The member" ((...)) complainant), corresponding to an alphanumeric membership code ((...)), and that of HOLIDAY FIT TRES CANTOS, S.L. with a handwritten signature.
- In the content of the complaint, the plain text of an email is provided, which, according to (...) the complainant, they received from the email address "No reply Holiday Gym (...)", on February 8, 2021, at 14:51 hours, in response to the complaint they submitted through the gym's website. The content is as follows:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/45

"A.A.A.

Thank you for contacting us through suggestions.

We have forwarded your request to the appropriate department for analysis (we are resending your contract where the section you refer to is specified).

TWELFTH.- By signing this contract, the member grants authorization for the company to use interchangeably all images, photographs, videos, voice files, graphic material, etc., (hereinafter referred to as the images) in which they participate or are part of.

Furthermore, the member authorizes the communication or transfer of the images to individuals that the company deems appropriate, for the same purpose indicated in the previous section, expressly informing them that in some cases, international data transfers will be carried out for such transfer. Specifically, this data may be communicated to third parties, without any additional consent on their part, provided that this communication is limited to this purpose. The member grants this authorization with a broad territorial and temporal scope, so the company may use the images, or parts thereof, throughout Spanish territory and in all countries of the world without any geographical limitation of any kind. The member grants this authorization for the use of the images in which they appear, or parts thereof, in the scope and purposes of both communication and dissemination of the company's activities, as well as any other project, understood in its broadest form, aimed, by way of example but not limitation, at promoting the activities of the company, in its own centers, its website, and in any other medium that the company considers, being exploitable in all known media today and those that may develop in the future, all with the sole exception and limitation of those uses or applications that may infringe upon the right to honor, morality, and/or public order, under the terms provided in the current legislation in each country. This authorization is understood to be granted free of charge. As a consequence of the transfer, the member expressly exempts the company from any liability regarding any use that a third party may make of the images, outside the territorial, temporal, and material scope of this contract. All of this is under the protection of the provisions of Organic Law 1/1982, of May 5, on Civil Protection of the Right to Honor, Personal and Family Privacy, and One's Own Image, as well as EU Regulation 2016/679, of April 27, 2016, and other applicable data protection regulations. Thank you for being part of the Holiday Gym family.

We inform you that this email account is for sending emails only. The inbox of this account does not receive emails. To contact us, you can do so through the Suggestions Form on our website or APP.

Best regards, B.B.B.

Customer Service Department Holiday Gym

The content of the complaint to which the previous communication was responding is as follows:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

"The above-mentioned refers to an abusive clause or response, knowing that I have communicated very clearly and repeatedly that I do not consent to being recorded or to the use of recordings in which I appear. Therefore, it can be deduced that, in addition, they are violating the law by illegally trafficking with the data.

(...)

I again request that all videos, photos, or images be deleted from (...) since it cannot be known whether I have been recorded or not (even if it is part of my body or even if my face has not been focused on. It will always be their word against mine, as I cannot access the recorded videos. I request that all my data and my fingerprint, which they use for access to the center, be deleted. The deletion of data also implies that they do not send me any type of advertising. Despite not being allowed to enter the gym and having unilaterally terminated the contract, they continue to send me advertising through electronic means.

(...)

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on July 6, 2023, this complaint was forwarded to SCHOOL FITNESS, for them to proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in the LPACAP through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on July 17, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail that was duly notified on July 20, 2023. In that notification, they were reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means; result notified on July 25, 2023.

On August 7, 2023, a written response from SCHOOL FITNESS was received by this Agency, in which they denied the facts subject to the complaint and the incident of May 9, 2023, and made the following statements:

- Regarding the recording of images, "in the subscription contract, members expressly consent to the recording and dissemination of images in the practice of individual and collective sessions, and verbal consent is also requested from the interested party," and "No recordings of the sessions are stored or published without the user's consent."
- Regarding the exercise of rights by (...) the complainant, "there is no basis for the data protection complaint for the simple reason that no image of her has been obtained, nor has it been stored, so there is nothing to cancel."
- Regarding the adoption of measures, "The company understands that it is not appropriate to adopt any measures in this regard; however, after receiving this communication, a meeting was held with the customer service department to review the specific case, informing employees of the latest updates on data protection."

Along with the written response, the following documentation was provided:

- Document No. 1 "Complaint day 7221.pdf". Complaint filed by (...) complainant ((...). Client. Tres Cantos), on February 7, 2021, through the HOLIDAY FIT TRES CANTOS website. Its content states (i) the complaint about the alleged recordings of images of clients without their consent, (ii) the discomfort suffered and the consequences that the complainant is enduring because of it, and (iii) that they do not consent or authorize photos or videos to be taken of them in any of their centers and in general.
- Document No. 2 "Response day 8221.pdf". Response issued by the Customer Service Department of Holiday Gym, on February 8, 2021, to the complaint filed by (...) complainant. At the top of the document, it states "08/02/2021 (...) Email sent to the client" and the following content:

"A.A.A.,

We inform you that, as we have indicated in previous complaints, no one is recorded who does not authorize being recorded for the promotion of the center's activities by the brand. Again, if there has been any confusion regarding this matter, we apologize, as we never focus on any user who does not wish to be recorded, emphasizing this greatly.

Thank you for being part of the Holiday Gym family.

This email account is for sending emails only. The inbox of this account does not receive emails. To contact us, you can do so through the Suggestion Form on our website or APP.

Best regards, B.B.B.

Customer Service Department Holiday Gym"

- Document "Contract cancellation returns.pdf". Its content includes:

- o Copy of the contract signed between (...) complainant and the entity HOLIDAY FIT TRES CANTOS, S.L., on September 13, 2022, for a validity of 12 months. The copy contains two signatures, that of "The member" (...) complainant), corresponding to an alphanumeric membership code (...), and that of HOLIDAY FIT TRES CANTOS, S.L. with a handwritten signature.

- o Copy of the cancellation contract of (...) complainant, dated May 18, 2023, signed only by HOLIDAY FIT TRES CANTOS, S.L., with the following content:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/45

"(...)"

In the section "Annex," the following clause regarding the protection of personal data is included:

"2. At this moment, when you request cancellation, we remind you that you can exercise your rights of access, rectification, cancellation, or opposition by contacting School Fitness Holiday Franchising (to the attention of the Legal Department) as the data controller at the email address: ***EMAIL.1, or at the following postal address: ***ADDRESS.1"

or

Copy of the bank statement regarding the collection of the fee and the partial refund after the cancellation to (...) claimant, with "print date August 7, 2023."

THIRD: On August 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions carried out, the following points have been noted:

Due to the nature of the case, it was deemed necessary to conduct an on-site inspection to reliably ascertain the existence of recording cameras, capturing images of clients, and other related aspects. Additionally, to verify on-site the existing protocols and operations regarding this matter, in the environment where the alleged events occurred.

Two on-site inspections were conducted, the first inspection took place on November 22, 2023, while the second was carried out on December 19, 2023. This was due to the fact that the first inspection requested authorization solely for the investigation actions at SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L., and the second for the other investigated entity, HOLIDAY FIT TRES CANTOS S.L., which manages the physical gym establishment.

Taking as a reference the action AT/03558/2023, in which the transfer of the complaint to SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. was ordered, it was this same entity that responded to the information request and did not indicate at any time any different organizational circumstances.

However, during the course of the first inspection, based on the statements provided by the representatives of the entity and the review of the documentation submitted in the complaint, the business framework in which the investigated entities operate and the organization of the commercial

group was clarified, as will be detailed later.

The results obtained in both inspections were similar, with the main representative of the entities, in the capacity of attorney, being the same person in both cases.

The inspection consisted of two parts, as reflected in the inspection report. In the first part, the inspection team of this Agency met with the representatives of the complained party, explained the reason for their visit, and detailed the alleged facts, while addressing the statements of the complained party. The second part consisted of the collection of evidence along with the performance of various tests on the information systems used by the gym.

1. Information obtained.

- Business organization

The representatives of HOLIDAY FIT indicated that (i) HOLIDAY FIT TRES CANTOS S.L. is part of the group of companies operating under the commercial brand HOLIDAY GYM, with the parent company of the group being SCHOOL FITNESS HOLIDAY & FRANCHISING S.L., and that (ii) each company in the group has its own legal personality and management autonomy. However, the parent company acts as a coordinator and is responsible for common group management tasks such as brand promotion. In fact, it manages the various accounts that the group has on social media for these promotions and the publication of content. The gym located in Tres Cantos, therefore, is under the jurisdiction of HOLIDAY FIT TRES CANTOS S.L., with the staff working there being employees of this entity.

The roles played by both entities are those of joint controllers of the processing, as will be discussed below.

It should be noted that this model has been adapted over time, which is why some of the documentation provided referred to a direct relationship between (...) claimant and SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L.

Regarding this issue, HOLIDAY FIT provided the following documentation:

- Document "Docs 4, 5, 6.pdf." Copy of the "Collaboration Agreement and Personal Data Processing" concerning the business group and the relationships that structure the operation between SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. and HOLIDAY FIT TRES CANTOS S.L. (hereinafter, the gym), dated July 1, 2018. It bears the handwritten signature of C.C.C.

The roles defined according to this agreement are those of joint controllers, as indicated: "the aforementioned companies will collaborate to optimize the experience for clients, constituting themselves as joint controllers of the processing of personal data." Subsequently, it is stated that this aspect will be communicated to clients: "The GYM will inform clients...

8/45

from the aforementioned relationship of co-responsibility as part of the process of onboarding new clients."

Regarding the processing that each party will carry out, it is stated: "The GYM will process the personal data of its clients for the purpose of managing billing and collection of the service, to provide in-person physical training services, and for the in-person sale of training products."

On the other hand, "SCHOOL FITNESS HOLIDAY & FRANCHISING SL. will process the personal data received from the GYM for the following purposes:

- Manage members' access to the gym, depending on each one's rate.
- Offer digital services (training routines, workout music, etc.) to all GYM clients through the website holidaygym.es and the mobile application of the same name.
- Send commercial information in electronic format.
- Online sale of training products.
- Maintenance of the file "Rights of Admission."
- Publish promotional images and videos of the gyms on the website and on social media (exclusively of GYM employees and clients who have given their consent)."

Regarding the exercise of rights, the following operational procedure is indicated: "The exercise of rights of access, rectification, deletion, opposition, limitation, and portability, which individuals exercise in person, will be attended to at the GYM reception. If an individual exercises their rights by postal or electronic means, the requests will be handled by SCHOOL FITNESS HOLIDAY & FRANCHISING

SL.”

☐

Recording of videos and images:

The representatives of HOLIDAY FIT stated that (i) the recording and taking of images is done for the purpose of commercially promoting the gym, showcasing the different activities that take place there, but that it is occasional, for example, on some holidays or special dates; and that (ii) in the case of the Tres Cantos establishment (HOLIDAY FIT TRES CANTOS S.L.), it is the (...) of that center who is the only person recording images of the clients. These are taken using a single corporate mobile phone that is kept by the same (...).

Furthermore, the representatives of the aforementioned entity indicated that they have a written protocol regarding the recording of images, contained within the existing manual available to the monitors, along with the data protection clauses of the employment contract. Among the measures indicated by the responsible party, it is also stated that personal phones of the monitors should not be used in the classrooms while they are teaching classes. There is also basic training on data processing upon their incorporation.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/45

Regarding this issue, HOLIDAY FIT (TRES CANTOS) provided the following documentation:

- Document “Doc.3 MPO General.pdf”. Copy of the “General Procedure Manual” that is available to employees applicable to this situation. No publication date is noted, and the logo “Holiday Gym” appears on all pages.

In the section “Data Protection” (page 4 and following), the following aspects are highlighted:

“(...)”

“(...)”

“(...)”

In the section “Monitors” (page 15 and following), the following issues are highlighted:

“(...)”

“(...)”

- Document “Docs 4, 5, 6.pdf”. Copy of an “Indefinite Employment Contract” signed in February 2022 between HOLIDAY FIT TRES CANTOS S.L. and an employee with the position of “multifunctional monitor,” whose data appears anonymized; as well as the data protection and confidentiality clauses contained in said contract (Pages 1 to 16).

Among the clauses is a “Confidentiality Commitment” with HOLIDAY FIT TRES CANTOS S.L., stating that the employee: “(...)” It is also specified that they must not collect any information upon termination of the employment relationship “(...)”

There are two sections regarding the use of computer systems. In them, no mention has been found regarding the use of mobile phones.

Regarding the authorization for the use of images, it is directed towards the publication of images of the employees themselves, not of the clients (...). And, the following aspects are detailed:

“(...)”.

At the end of this section, there is a box to authorize or reject the processing of one's own image.

☐

Dissemination of videos and images:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/45

Regarding the dissemination of multimedia material, representatives of HOLIDAY FIT indicated (i) that

these images are published on social media, specifically on Instagram on the group's account, in the so-called stories of the application, which last for 24 hours, (ii) that they have been used on Facebook and are in the process of being used on TikTok, (iii) that for fixed publications, signage, etc., they use material from an image bank, tagging the clients themselves in some of these temporary social media posts; and (iv) that the publication of this content is carried out by the marketing department of the parent company, located at its central services. They are not published from each specific gym.

Regarding the operational procedures used for the recording itself, as well as the motivation behind it, representatives of HOLIDAY FIT TRES CANTOS stated that the marketing department is responsible for initiating the various campaigns that are carried out, generally for specific dates or events. To this end, they request the different gyms to take images and videos of the activities or other aspects such as decoration. These requests are made via corporate email. The multimedia files are shared using the OneDrive tool, through a shared folder between each of the gyms and the marketing department. Once the content has been downloaded by the marketing department, they proceed to delete it from OneDrive.

They indicated that the files are periodically deleted from the mobile phone by the (...) of the center and, regarding the email, the (...) of the center (...) does not specifically delete the sent emails as they state. There is also no email configuration for automatic periodic deletion.

-

Relationship and information for clients regarding the recordings:

Regarding the consent provided by clients, representatives of HOLIDAY FIT TRES CANTOS stated that consent for recording, in addition to the contractual clauses that will be addressed below, is obtained verbally at the beginning of each class that is to be recorded. At the same time, the purpose of the recording is communicated. If someone indicates that they do not want to be recorded, they are asked to step aside so as not to appear in the recording or to leave the room during that moment. The representatives of HOLIDAY FIT state that clients are informed of their data protection rights, both in the mobile application and on the website. In the registration and subscription process, acceptance of the privacy policy and legal terms is mandatory. This section includes the contact method to exercise their rights, according to their statements.

Regarding this matter, HOLIDAY FIT provides the following documentation:

- Document "Docs 4, 5, 6.pdf". Copy of the "Contracting Conditions" among which is the information regarding data protection that is provided to clients during the registration process (Pages 11 to 16). In section "2. Acceptance of the contract and data protection," the following aspects are included:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/45

"Information on data protection.

Data Controller:

The processing of my data will be carried out by two joint data controllers: SCHOOL FITNESS HOLIDAY & FRANCHISING SL. and HOLIDAY FIT TRES CANTOS SL.

Purpose of processing:

SCHOOL FITNESS HOLIDAY & FRANCHISING SL. is the owner of the Holiday Gym brand, the website holidaygym.es, and the mobile application of the same name. It will process my data to manage my access to the various gyms based on my rate, to offer me the digital services to which I am entitled as a member, to send me information in electronic format, for the online sale of training products, for the maintenance of the admission rights file, and in case I grant my consent, to publish images or videos on the website or social media. HOLIDAY FIT TRES CANTOS SL is the owner of the gym where I am contracting the service and will process my data to manage the billing and collection of the service and to provide me with in-person physical training services and the in-person sale of training products.

Legitimacy:

The general basis for legitimization of the processing is the contractual relationship with the two joint

controllers. The timely sending of commercial information, the processing of video surveillance, and control of the admission rights, are based on the legitimate interest of the joint controllers. Additionally, my consent, if I decide to grant it, is the basis for legitimization of the processing of photographs or videos in which my image appears.

Recipients:

My personal data and images from video surveillance may be shared with the Security Forces and Bodies and with the Courts and Tribunals, if necessary for the investigation of infractions or crimes. If I have granted my consent, my image may appear in photographs or videos published on the Holiday Gym website and social media. My personal data will not be transferred to other third parties unless legally required.

Rights:

I have the right to access, rectify, delete, and object to the processing of my personal data. I also have the right to data portability and to limit the processing of my data, addressing SCHOOL FITNESS HOLIDAY & FRANCHISING SL. ***ADDRESS.1 or by requesting it at the following email address:

***EMAIL.1

I also have the right to file a complaint with the Spanish Data Protection Agency if I believe my rights have been violated.

Contracting conditions.

(...)

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

12/45

I accept the contract including its general and specific conditions and the gym rules, and I expressly accept the processing of my personal data by the company for the purposes set out in this contract/general contracting conditions.”

By diligence carried out by this Agency on January 8, 2025, the contracting process through the website ((...)) was reviewed, detecting relevant information that has been omitted in the documentation provided. In particular, during the contracting process, the following point is noted:

(...)

This section is mandatory for the contracting of services. Therefore, it could contradict other actions and guarantees related to obtaining the consent of the interested parties.

It has been verified that the company referred to in this clause varies depending on the headquarters for which the online registration is being made. The previously cited text is reproduced for the case of contracting at the gym located in Tres Cantos.

On the other hand, in the online contracting process, there was no mention within the clauses of what was previously indicated regarding consent for the processing of images (“my consent, if I decide to grant it, is the basis for legitimization of the processing of photographs or videos in which my image appears.”).

2. Evidence obtained.

Next, moving on to the evidence obtained during the on-site inspection, the inspection team of this Agency initially requested permission from the representatives of HOLIDAY FIT TRES CANTOS to allow them access to their facilities and to show them the image recording operation, as well as the transfer of these files and their subsequent deletion.

The following checks were made on the mobile phone and corporate email (via a computer) of (...) from the center, with him present and being the one who manipulated the devices:

- Through the file manager of the mobile terminal, various folders where multimedia content of the system is stored were reviewed, finding no content related to clients.
- The email inbox of (...) from the center was reviewed, in the different existing folders. The checks were made chronologically, reviewing the oldest items in the inbox to verify the conservation procedures.

As results obtained, it was verified that there are no old video sends whose material is accessible. A single email was found sent to the marketing department of the corporate group with some photographs of clients, dated May 25, 2023. These photographs do not

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/45

They were sent via OneDrive, as is the usual procedure, but were attached as documents. The representatives of the entity state that they were sent this way because they were provided by the client via email and, exceptionally, it was managed this way for convenience. The inspectors verify that these images indeed come from an email with the domain Gmail.com.

-

There are no email policies configured for the automatic deletion of old emails containing multimedia material (images, videos), so deletion must be done manually. Additionally, it was verified that the gym does not have fixed recording cameras in the classrooms or in the sports facilities used by clients, checking the different rooms that make up the premises. It does have a camera at the entrance of the establishment, but it does not capture images during activities, only for access control.

3. Other evidence obtained.

The representatives of HOLIDAY FIT TRES CANTOS state that there is no transfer of data to third countries. They indicate that the reference appearing in certain documentation was from old contracts, which were not used, but appeared for greater legal security. They state that it no longer exists.

Finally, it is noted that the Data Protection Officer has not issued a specific report on this processing.

There is no written risk analysis for this processing; however, they state that in meetings held at the management level of the entity, the security measures that must be implemented have been discussed, although they have not been documented in writing.

4. Publication of images and videos of clients on social media.

Following the reported facts, the publications on social media, particularly on Instagram, made from the corporate account of the group (**URL.2) have been reviewed.

In it, most of the publications are from monitors (who indicate this at the beginning of the recordings), and the temporary publications, which last for 24 hours, are often from clients who send them themselves and that the group shares from the corporate account. However, the following publications from the year 2024 related to the recording of classes, made directly from the corporate account, have been located, in which clients do appear:

-

***URL.3

-

***URL.4

-

***URL.5

-

***URL.6

-

***URL.7

-

***URL.8

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/45

-

***URL.9

As it is a common account for the commercial brand, it is not specified in which particular gym these videos were recorded.

5. Regulatory framework and additional documentation obtained.

HOLIDAY FIT TRES CANTOS has provided, in addition to the documents mentioned in this report, the following documentation:

-

Document "Doc.1. Record of treatment activities School.pdf". The record, with a "print date" of January 2, 2024, is prepared by SCHOOL FITNESS HOLIDAY & FRANCHISING S.L. and consists of 12 points.

In section "1. Attention to the rights of individuals (ARCO)", the following issues are included:

"(...)

(...)

(...)

(...)

(...)

(...)

(...)."

In section "3. Clients" the following aspects are included:

"(...)

(...)

(...)

(...)

(...)."

In section "8. Images", the following aspects are included:

"(...)

(...)

(...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/45

(...)."

In section "12. Video surveillance", the following aspects are included:

"(...)

(...)

(...)

(...)

(...)."

-

Document "Doc 2. Contract signed with Holiday Fit Tres Cantos.pdf".

o

Copy of the contract signed between (...) claimant and the entity HOLIDAY FIT TRES CANTOS, S.L., dated September 13, 2022, for a validity of 12 months, the copy of the cancellation contract of (...) claimant, dated May 18, 2023, signed only by HOLIDAY FIT TRES CANTOS, S.L., and a copy of the bank statement regarding the collection of the fee and the partial refund after the cancellation to (...) claimant, with "print date August 7, 2023". This documentation is identical to that provided by SCHOOL FITNESS in its response to the transfer, dated August 7, 2023.

FIFTH: According to the report obtained from the AXESOR tool, the entity SCHOOL FITNESS is a company established in 2001, with a business volume of €978,207 in 2023.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions..."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/45

in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringements committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the file of actions will be archived, in accordance with the provisions established in Article 64 of the LOPDGDD.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

III

Preliminary Issues

Processing of Personal Data

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

In this case, the recording and publication of images and videos captured during classes held in gyms constitutes processing of personal data since the image is a personal data. This processing is evidenced in the documentation provided within the framework of the preliminary investigation actions carried out by this Agency.

Roles regarding the recording and publication of images and videos for promotional purposes

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

alone or together with others, determine the purposes and means of processing; if the law of the Union or of the Member States determines the purposes and means of processing, the data controller or the specific criteria for their appointment may be established by the law of the Union or of the Member States.”

Article 4.8) of the GDPR defines the “processor” or “data processor” as “the natural or legal person, public authority, service, or other body that processes personal data on behalf of the data controller.”

Article 26 of the GDPR defines “Joint Controllers” as: “1. Where two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers. The joint controllers shall determine in a transparent manner and by mutual agreement their respective responsibilities for compliance with the obligations under this Regulation, in particular regarding the exercise of the data subject's rights and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by the law of the Union or of the Member States applicable to them. Such an arrangement may designate a contact point for data subjects.”

In the inspection report dated December 19, 2023, the following statements from representatives of HOLIDAY FIT TRES CANTOS are highlighted:

1. “HOLIDAY FIT TRES CANTOS SL is part of the group of companies operating under the trade name HOLIDAY GYM, with the parent company of the group being SCHOOL FITNESS HOLIDAY & FRANCHISING SL. Each company in the group has its own legal personality and management autonomy; however, the parent company acts as a coordinator and is responsible for common group management tasks such as brand promotion. In fact, it is responsible for managing the various accounts that the group has on social media for these promotions.” (the emphasis is from this Agency).
2. “The recording and taking of images is carried out for the purpose of commercially promoting the gym, showcasing the different activities that take place in it. (...) In the case of the establishment in Tres Cantos, it is the (...) the only person who records images of the clients. They are taken using a single corporate mobile phone that is kept by the same person (...). These images are published on social media, specifically on Instagram on the group's account, in the so-called stories of the application, which last for 24 hours. They also indicate that they have been used on Facebook and are in the process of being used on TikTok. For fixed publications, signage, etc., they use material from an image bank. The clients themselves are tagged in some of these temporary social media posts.” (the emphasis is from this Agency).
3. “The publication of this content is carried out by the marketing department of the parent company, located at its headquarters. It is not published from each specific gym. The marketing department is responsible for initiating the various campaigns that are carried out, which are generally conducted for specific dates or events. To this end, they request the different gyms to take images and videos of activities or other aspects such as decoration. These requests are made via corporate email. The multimedia files are shared using the OneDrive tool, through a shared folder among each of the gyms and the marketing department. Once the content has been downloaded by the marketing department, they proceed to delete it from OneDrive. (...)” (the emphasis is from this Agency).

On January 4, 2024, HOLIDAY FIT TRES CANTOS provided the documentation requested by this Agency, which highlights:

- Document 1. The Record of Processing Activities, prepared by SCHOOL FITNESS HOLIDAY & FRANCHISING S.L. and printed on January 2, 2024. In section “8. Images,” the following is noted:

“(…)
 (...)
 (...)
 (...)
 (...).”

- Document 2. A copy of the contract signed between (...) claimant and HOLIDAY FIT TRES CANTOS, S.L., dated September 13, 2022, which does not contain any clause regarding data protection; as well as a copy of the termination contract of (...) claimant, dated May 18, 2023, which identifies SCHOOL FITNESS HOLIDAY & FRANCHISING as the data controller for the purposes of

exercising the rights provided for in the GDPR.

- Document 3. The Operating Manual for employees of HOLIDAY GYM, which includes a section ("Data Protection") addressing the protocol for collecting images, requesting consent from clients, work procedures, and file deletion. This manual identifies SCHOOL FITNESS HOLIDAY & FRANCHISING S.L. as the data controller for the images and videos recorded and published.

- Documents 4, 5, and 6. A copy of an "Indefinite Employment Contract" signed in February 2022 between HOLIDAY FIT TRES CANTOS S.L. and an employee, which includes a confidentiality agreement and a section regarding the transfer of images for brand promotion directed solely towards the employees themselves. It identifies HOLIDAY FIT TRES CANTOS S.L. as the data controller. Additionally, a copy of the "Contracting Conditions," which details the information regarding data protection provided to clients during the registration process. It identifies HOLIDAY FIT.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/45

TRES CANTOS S.L. and SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L.

as joint controllers of the processing.

Finally, a copy of the "Collaboration and Personal Data Processing Agreement" signed between SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. and HOLIDAY FIT TRES CANTOS S.L. ("gym") on July 1, 2018, is provided, in which it is stipulated that both entities will act as joint controllers of the processing and will carry out the following processing activities:

"The GYM will process the personal data of its clients for the purpose of managing billing and collection of the service, to provide in-person physical training services, and for the in-person sale of training products.

SCHOOL FITNESS HOLIDAY & FRANCHISING S.L. will process the personal data received from the GYM for the following purposes:

- Manage member access to the gym, based on each individual's rate.
- Offer digital services (training routines, workout music, etc.) to all GYM clients through the website holidaygym.es and the mobile application of the same name.
- Send commercial information in electronic format.
- Online sale of training products.
- Maintenance of the "Rights of Admission" file.
- Publish promotional images and videos of the gyms on the website and on social media (exclusively of GYM employees and clients who have given their consent)."

As can be observed, from the statements and documentation provided by HOLIDAY FIT TRES CANTOS in the context of the preliminary investigation actions, it is inferred that there are contradictions regarding the roles played by SCHOOL FITNESS and HOLIDAY FIT.

According to the Guidelines 07/2020 of the EDPB, joint processing occurs when there are several participants in the processing who hold the status of data controllers and jointly determine the purposes and means of a processing operation. Just as with the concepts of "data controller" and "data processor," the "joint controller" is a functional concept, and it is necessary to establish it based on their specific activities in the analyzed case and not based on the formal designation that may appear in the agreement or contract: "52. The assessment of joint responsibility must be based on a factual analysis, and not on a formal analysis, of the actual influence over the purposes and means of the processing. All existing or planned agreements must be subject to verification in relation to the factual circumstances in which the relationship between the parties develops. For this, it is not enough to be guided by a mere formal criterion, at least for two reasons: in some cases, the formal appointment of a data controller may be lacking— for example, by virtue of law or contract—; in others, it may occur that the formal appointment does not reflect the reality of the agreements, as the function of data controller has been formally entrusted to an entity that, in practice, is not in a position to "determine" the purposes and means of the processing."

In this case, this Agency considers that, although there is an agreement between HOLIDAY FIT TRES

CANTOS and SCHOOL FITNESS by which they would act as joint controllers of the processing, in practice, it is SCHOOL FITNESS that determines the purposes and means of the processing consisting of the recording and publication of images and videos on the websites and social media of the group companies in order to promote the commercial brand. It is the one that decides when, how, and what commercial campaigns should be carried out; while HOLIDAY FIT TRES CANTOS is limited to taking images and videos of the activities or other matters that the marketing department of SCHOOL FITNESS indicates to it.

Therefore, this Agency concludes that SCHOOL FITNESS carries out that processing operation in its capacity as data controller, as it is the one that determines the purposes and means of such activity, pursuant to Article 4.7) of the GDPR. For its part, HOLIDAY FIT TRES CANTOS is considered a data processor, acting on behalf of SCHOOL FITNESS in the recording of the images and videos used for promotional purposes.

Finally, it should be noted that paragraph 11 of the aforementioned Article 4 of the GDPR states the following:

11. "consent of the data subject": any manifestation of will that is free, specific, informed, and unequivocal by which the data subject accepts, either by means of a statement or a clear affirmative action, the processing of personal data concerning them."

IV

Obligation not fulfilled. Consent of the data subject

Article 6 "Lawfulness of processing" of the GDPR establishes:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/45

f) the processing is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that these interests do not prevail over the interests or the fundamental rights and freedoms of the data subject requiring the protection of personal data, particularly when the data subject is a child.

The provisions of letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

Article 6 of the GDPR establishes in its paragraph 1 the circumstances under which the regulation allows for the processing of personal data of a third party, referred to as "legal bases." If none of these circumstances or conditions are met, the processing will not be legitimate or considered lawful under the GDPR.

In the present case, from the documentation in the file, it can be inferred that the consent of the data subject would constitute the legal basis that would legitimize HOLIDAY FIT TRES CANTOS to carry out the processing consisting of the recording and publication of images and videos of clients during the classes held in its facilities. This is derived from the statements made by the entity indicating that clients would have consented to the recording of images and their subsequent dissemination.

Regarding this issue, (...) the complainant provided documents noted in the "Facts" section, first point, of this agreement. In the contract dated April 13, 2022, signed between (...) the complainant and HOLIDAY FIT TRES CANTOS, no section has been located that requests the client's consent for the recording and publication of their image on the entity's website and social media. It should be noted

that, at the time the contract was signed in September 2016 between both parties, the GDPR was not yet applicable.

Furthermore, at the present moment of the initiation of the sanctioning procedure, and comparing the content of the responses to the complaint raised by (...) the complainant through the HOLIDAY FIT TRES CANTOS website attached to the complaint and the response to the transfer from SCHOOL FITNESS, the document from SCHOOL FITNESS does not contain the transcription of any clause of the contract related to the use of the image. However, the sender in the signature block is the same person, "B.B.B. Customer Service Department Holiday Gym."

In the response document to the transfer dated August 7, 2023, SCHOOL FITNESS stated that (i) "in the subscription contract, members expressly consent to the recording and dissemination of images during individual and group sessions, and verbal consent is also requested from the data subject" and (ii) "The legitimacy of the consent of the other users is given by the express acceptance at the time of signing the subscription contract, and additionally, verbal consent is requested from the member who may be affected." As proof of these statements, it provided an identical copy of the registration contract submitted by (...) the complainant and, therefore, where there is no clause of consent for the processing in question.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/45

For their part, the representatives of HOLIDAY FIT TRES CANTOS stated during the on-site inspection conducted by this Agency on December 19, 2023, that consent is the legal basis that supports the processing of personal data consisting of the recording and publication of images and videos of the clients of HOLIDAY FIT TRES CANTOS. Specifically, they indicated that (i) "Consent for recording, in addition to the contractual clauses, is obtained verbally at the beginning of each class that is to be recorded. At the same time, the purpose of the recording is communicated. If any person indicates that they do not wish to be recorded, they are asked to step out to avoid appearing in the recording or to leave the room during that moment" and that (ii) "There is a written protocol regarding the recording of images, included in the manual available to the monitors, along with the data protection clauses of the employment contract."

As evidence of these statements, they provided documentation highlighting:

- Document 1. In section "8. Images" of the Record of Processing Activities prepared by SCHOOL FITNESS, with a print date of January 2, 2024, it states that the legal basis that legitimizes SCHOOL FITNESS to process the personal data of images is the consent of the interested party, and that the purpose is to publish promotional images and videos on the website and social media.
- Document 2. In the copy of the contract signed between (...) claimant and HOLIDAY FIT TRES CANTOS, dated September 13, 2022 and signed, there is no clause regarding data protection, the content of which is identical to that provided by (...) claimant.
- Document 3. In the section "Data Protection" of the general procedure manual, it instructs workers to record while reading the following text to clients before taking images for promotional purposes:

"Text to be recorded as proof:

Hello everyone. As part of the data protection protocol, I have to read you this text:

Participation is completely free and voluntary, and anyone who does not wish to appear in photographs or videos, please position yourselves outside the recording area I have indicated. Those of you who are in the recording area are giving your consent to appear in the photographs or in the video that we will edit. The Data Controller of these images is SCHOOL FITNESS HOLIDAY & FRANCHISING SL, which may use them for the promotion of Holiday Gym gyms on our website holidaygym.es or on our social media accounts. You may exercise your data protection rights on the website holidaygym.es or at the email address ***EMAIL.1"

- Documents 4, 5, and 6. In the copy of the "Contracting Conditions," without date or signature, it states:

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
23/45

“Purpose: (...) In the event that I grant my consent to publish images or videos on the web or social media.

Legitimacy: (...) Additionally, my consent, if I decide to grant it, is the legal basis for the processing of photographs or videos in which my image appears.

Recipients: (...) In the event that I have granted my consent, my image may appear in photographs or videos published on the web and social media of Holiday Gym. (...)

Contract Conditions: (...) I accept the contract including its general and specific conditions and the gym rules, and I expressly accept the processing of my personal data by the company for the purposes outlined in this contract/general conditions of contracting.”

Taking into account what is described in the previous paragraphs, it is stated, first of all, that in the Record of Processing Activities prepared by SCHOOL FITNESS, the legal basis for the processing of images for promotional purposes is the consent of the data subject. In this regard, it is necessary to point out that Article 7 of the GDPR refers to the circumstances that must be present for the granting of consent, namely:

- “1. When the processing is based on the consent of the data subject, the controller must be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration that also refers to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract.”

For its part, the LOPDGDD states in its Article 6, titled “Processing based on the consent of the affected party,” the following:

- “1. In accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, the consent of the affected party is understood to be any expression of free, specific, informed, and unequivocal will by which they accept, either through a...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
24/45

declaration or a clear affirmative action, the processing of personal data concerning him/her.

2. When the processing of data is intended to be based on the consent of the data subject for multiple purposes, it must be specifically and unequivocally stated that such consent is granted for all of them.
3. The execution of the contract may not be conditioned on the data subject consenting to the processing of personal data for purposes that are not related to the maintenance, development, or control of the contractual relationship.” (the underlining is from this Agency).

On these matters, the Guidelines 5/2020 of the EDPB provide mechanisms to assist in the interpretation of these criteria and their compliance by the data controllers. From what is indicated in this document, it is important to highlight some aspects related to the validity of consent, specifically regarding the elements “specific,” “informed,” and “unequivocal”:

- “3.2. Specific expression of will

Article 6, paragraph 1, letter a), confirms that the consent of the data subject for the processing of their data must be given “for one or more specific purposes” and that a data subject can choose with respect to each of those purposes. The requirement that consent must be “specific” aims to ensure a level of control and transparency for the data subject. This requirement has not been modified by the GDPR and remains closely linked to the requirement of “informed” consent. At the same time, it must be interpreted in line with the requirement of “dissociation” to obtain “freely” given consent. In summary, to comply with the character of “specific,” the data controller must apply:

- i) the specification of the purpose as a safeguard against misuse,
- ii) the dissociation in consent requests, and
- iii) a clear separation between the information related to obtaining consent for data processing activities and the information related to other matters.

(...)

“3.3. Informed expression of will

The GDPR reinforces the requirement that consent must be informed. In accordance with Article 5 of the GDPR, the requirement of transparency is one of the fundamental principles, closely related to the principles of fairness and lawfulness. Providing information to data subjects before obtaining their consent is essential for them to make informed decisions, understand what they are authorizing, and, for example, exercise their right to withdraw their consent. If the controller does not provide accessible information, user control will be illusory, and consent will not constitute a valid basis for the processing of data.

If the requirements related to informed consent are not met, the consent will not be valid, and the controller may be in violation of Article 6 of the GDPR.

3.3.1. Minimum content requirements for consent to be “informed”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

25/45

For consent to be informed, it is necessary to communicate to the interested party certain elements that are crucial for making a choice. Therefore, the GT29 opines that at least the following information is required to obtain valid consent:

- i) the identity of the data controller,
- ii) the purpose of each of the processing operations for which consent is requested,
- iii) what (type of) data will be collected and used,
- iv) the existence of the right to withdraw consent,
- v) information about the use of data for automated decisions in accordance with Article 22, paragraph 2, letter c), when relevant, and
- vi) information about the potential risks of data transfer due to the absence of an adequacy decision and appropriate safeguards, as described in Article 46.

However, in the case at hand, the consent obtained by SCHOOL FITNESS and allegedly granted by the interested party would not meet the 4 legally required conditions.

SCHOOL FITNESS and HOLIDAY FIT TRES CANTOS claim that the consent of the interested party for the recording and publication of their image for promotional purposes is obtained at two moments, in the subscription contract and, additionally, verbally. However, from the documentation in the administrative file, it can be inferred that the registration contracts, at least as of April 13, 2022—the date on which (...) the complainant signed a registration contract with HOLIDAY FIT TRES CANTOS—do not mention any clause for the general use of customer images. The fact that the SCHOOL FITNESS contract model does not include such a clause means that the consent of its clients is flawed, as the 4 conditions required by Article 7 of the GDPR are not met for it to be considered valid and, therefore, the legitimizing basis of Article 6.1.a) of the GDPR does not apply.

It should also be noted that in the "Contracting Clauses," a copy provided by HOLIDAY FIT TRES CANTOS on January 4, 2024, the information regarding the granting of consent for the recording and

publication of images and videos of the interested party is confusing. While it seems that the interested party is free to grant their consent for their image to be used on the website and social media, in practice, it would not meet the conditions of consent as it is not free and informed. The signing of the document entails the full and express acceptance of all the clauses of the contract and, therefore, of the processing of their image as well, as can be inferred from the following clause: "Contracting conditions: (...) I accept the contract including its general and specific conditions and the gym rules, and I expressly accept the processing of my personal data by the company for the purposes set out in this contract/general contracting conditions" (the underlining corresponds to this Agency).

The same occurs in the online contracting process with HOLIDAY FIT TRES CANTOS ((...)), recorded by this Agency on January 8, 2025. The contracting of their services is conditioned upon the acceptance of several sections, among which is the one related to the image and its obtaining and dissemination for promotional purposes and for internal and external use of the company.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

26/45

Finally, it should be noted that, although both entities state that the consent of the interested party is also collected verbally at the beginning of the recordings, there is no evidence in the documentation of the administrative file to support this.

Consequently, in accordance with the evidence available at this time of the initiation of sanctioning procedure agreement, it is considered that the known facts could constitute an infringement attributable to SCHOOL FITNESS for violation of Article 7 of the GDPR.

V

Classification of the infringement of Article 7 of the GDPR and qualification for the purposes of prescription

If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could imply the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72.1 "Very serious infringements" of the LOPDGDD states:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

c) The failure to comply with the requirements set forth in Article 7 of Regulation (EU) 2016/679; (...); (...)"

VI

Proposal for sanction for the infringement of Article 7 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

27/45

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

28/45

- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, considering the seriousness of the possible infringements, particularly regarding the consequences that their commission causes to the affected parties, the imposition of a fine would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of SCHOOL FITNESS of €978,207 in the year 2023 is considered as a preliminary measure.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

As a preliminary matter, it is estimated that the following circumstances are present:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR): In this case, the infringement committed is notably serious, as the recording and subsequent publication of that content on the website and social media entails the possibility of immediate and widespread dissemination, considering that it can be accessed by any person.

Furthermore, the following aggravating factors are considered for grading:

- The link between the infringer's activity and the carrying out of personal data processing (Article 76.2, letter b), of the LOPDGDD): SCHOOL FITNESS is the parent company of a group of companies dedicated to gym activities, which, to carry out its activity, requires continuous processing of personal data. SCHOOL FITNESS, as a result of its business activity, habitually and continuously processes personal data of a large number of affected parties, which necessarily involves operations of personal data processing of the physical persons who are clients. Thus, the infringement occurs within the framework of personal data processing, in this case, consisting of the recording and...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

29/45

publication of images and videos in order to promote the commercial brand, which it regularly carries out.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 7 of the GDPR, initially allows for the imposition of an administrative fine of €15,000 (fifteen thousand euros).

VII

Obligation not fulfilled. Retention period

Article 5 "Principles relating to processing" establishes:

"1. Personal data shall be:

(...)

e) maintained in a manner that allows the identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be retained for longer periods provided that they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of the appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject ('storage limitation'); (...)"

The principle of storage limitation set forth in the aforementioned article subordinates the maintenance of personal data to the purpose for which it was collected, allowing for an extension of that period only when it concerns archiving in the public interest, scientific or historical research, or statistical purposes. In this case, the Record of Processing Activities prepared by SCHOOL FITNESS, with a print date of January 2, 2024, indicates in the section regarding the processing of images and the deletion period that "they will be retained for an indefinite period." It is evident that SCHOOL FITNESS, by establishing the retention period as indefinite, does not comply with the requirement set forth in the cited provision that data will be considered for the strictly necessary time for the purpose of processing. Retention for

an indefinite period does not align with that strict interpretation of the data retention period provided for by the regulations. Therefore, it can be understood that SCHOOL FITNESS has specified a retention period for the images intended to be published on the website and social media that does not conform to what is stipulated in the cited provision, since the retention of the images not only does not have a determined retention time but also, precisely for that reason, that retention period would exceed the purpose for which they were collected.

Thus, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement attributable to SCHOOL FITNESS for violation of Article 5.1.e) of the GDPR.

VIII

Classification of the infringement of Article 5.1.e) of the GDPR and qualification for the purposes of limitation

The known facts could constitute an infringement attributable to SCHOOL FITNESS, classified under Article 83.5 of the GDPR, under the heading “General conditions for the imposition of administrative fines” provides:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the limitation period for infringements, the imputed infringement is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

a) “The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679; (...)”

IX

Proposal for sanction for the infringement of Article 5.1.e) of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment suffered;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

31/45

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and

mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

32/45

In the present case, considering the severity of the possible infringements, especially regarding the consequences that their commission causes to the affected parties, the imposition of a fine would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of SCHOOL FITNESS of €978,207 in the year 2023 is considered beforehand.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions. Initially, it is estimated that the following circumstances concur:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damages suffered (Article 83.2(a) of the GDPR): In this case, the committed infringement is notably serious, as it entails the possibility of immediate and widespread dissemination, considering that any person can access it.

Furthermore, the following aggravating factors are considered:

- The connection of the infringer's activity with the processing of personal data (Article 76.2(b) of the LOPDGDD): SCHOOL FITNESS is the parent company of a group of companies dedicated to gym activities, which, to carry out its activity, requires continuous processing of personal data. SCHOOL

FITNESS, as a result of its business activity, regularly and continuously processes personal data of a large number of data subjects, which necessarily involves operations of personal data processing of the physical persons who are clients. Thus, the infringement occurs within the framework of personal data processing, in this case, consisting of the recording and publication of images and videos for the purpose of promoting the commercial brand, which it regularly carries out.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1(e) of the GDPR, allows for an initial administrative fine of €15,000 (fifteen thousand euros) to be set.

X

Obligation not fulfilled. Data processor

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

33/45

The provisions regarding the data processor are set out in Article 28 of the GDPR, which stipulates the following:

"1. When processing is to be carried out on behalf of a data controller, the controller shall choose only a processor that provides sufficient guarantees to implement appropriate technical and organizational measures, so that the processing will be in compliance with the requirements of this Regulation and will ensure the protection of the rights of the data subject.

2. The processor shall not engage another processor without the prior written authorization, specific or general, of the controller. In the latter case, the processor shall inform the controller of any intended changes concerning the addition or replacement of other processors, thereby giving the controller the opportunity to object to such changes.

3. The processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and establishes the subject matter, duration, nature, and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. Such contract or legal act shall stipulate, in particular, that the processor:

a) shall process the personal data only on documented instructions from the controller, including with regard to transfers of personal data to a third country or an international organization, unless required to do so by Union or Member State law applicable to the processor; in such a case, the processor shall inform the controller of that legal requirement before processing, unless that law prohibits such information on important grounds of public interest;

b) shall ensure that persons authorized to process personal data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

c) shall take all measures necessary in accordance with Article 32;

d) shall respect the conditions laid down in paragraphs 2 and 4 for engaging another processor;

e) shall assist the controller, taking into account the nature of the processing, by means of appropriate technical and organizational measures, insofar as this is possible, to enable the controller to comply with its obligation to respond to requests for exercising the rights of data subjects laid down in Chapter III;

f) shall assist the controller in ensuring compliance with the obligations laid down in Articles 32 to 36, taking into account the nature of the processing and the information available to the processor;

g) at the choice of the controller, shall delete or return all personal data after the end of the provision of services relating to processing, and shall delete existing copies unless Union or Member State law requires storage of the personal data; shall make available to the controller all information necessary to demonstrate compliance with the obligations laid down in this Article, as well as to allow and contribute to audits,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

including inspections, by the controller or another auditor authorized by the controller.

In relation to the provisions of letter h) of the first paragraph, the processor shall immediately inform the controller if, in their opinion, an instruction infringes this Regulation or other provisions regarding data protection of the Union or the Member States.

4. When a processor engages another processor to carry out certain processing activities on behalf of the controller, the same data protection obligations as those stipulated in the contract or other legal act between the controller and the processor referred to in paragraph 3 shall be imposed on this other processor, through a contract or other legal act established in accordance with Union law or the law of the Member States, in particular the provision of sufficient guarantees for the implementation of appropriate technical and organizational measures in such a way that the processing is compliant with the provisions of this Regulation. If that other processor fails to comply with its data protection obligations, the initial processor shall remain fully liable to the controller for compliance with the obligations of the other processor.

5. The adherence of the processor to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate the existence of the sufficient guarantees referred to in paragraphs 1 and 4 of this article.

6. Without prejudice to the fact that the controller and the processor enter into an individual contract, the contract or other legal act referred to in paragraphs 3 and 4 of this article may be based, in whole or in part, on the standard contractual clauses referred to in paragraphs 7 and 8 of this article, including when they form part of a certification granted to the controller or processor in accordance with Articles 42 and 43.

7. The Commission may set standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the examination procedure referred to in Article 93, paragraph 2.

8. A supervisory authority may adopt standard contractual clauses for the matters referred to in paragraphs 3 and 4 of this article, in accordance with the consistency mechanism referred to in Article 63.

9. The contract or other legal act referred to in paragraphs 3 and 4 shall be in writing, including in electronic format.

10. Without prejudice to the provisions of Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of processing, it shall be considered a controller with respect to that processing."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

As detailed in Legal Basis III of this initiation agreement, to which we refer for brevity, this Agency analyzed the reality of the facts to clarify the true role of SCHOOL FITNESS and HOLIDAY FIT TRES CANTOS regarding the recording and publication of images and videos of gym clients on the website and social media to promote the commercial brand. It concluded that SCHOOL FITNESS was actually the data controller of those images and videos, while HOLIDAY FIT TRES CANTOS acts as the data processor.

However, in the documents governing the relationships between both entities, this is not reflected, nor are the aspects required by Article 28.3 of the GDPR included.

The erroneous attribution of the roles of data controller and data processor implies a lack of clear responsibility allocation between both figures, preventing the data controller from fulfilling the obligations imposed by the GDPR to ensure the proper protection of personal data processed on its behalf concerning the delivery process control it carries out.

On the other hand, from the perspective of the data subjects whose data is being processed, this omission also has consequences: the contract between the data controller and its processor is an

element that not only legally articulates the relationship between two parties (data controller and data processor) but also serves as a guarantee of the rights and freedoms of the data subjects.

In this sense, the contract for the data processing operation subject to this sanctioning procedure must provide, among other aspects, that:

- The data shall only be processed following a double guarantee for the data subjects: the existence of documented instructions from the controller and the obligation of the processor to process personal data following those instructions.
- The employees of the processor who process the personal data of the data subjects must respect confidentiality.
- The processor must adopt all necessary measures in accordance with Article 32 of the GDPR.
- The processor may not engage another processor without the prior written authorization, specific or general, from the controller.
- The processor has the obligation to delete or return the personal data to the controller once the provision of the processing services has ended, and to delete existing copies unless the retention of the personal data is required under Union or Member State law.

In conclusion, this contract regulates and organizes how the relationship between the controller and its processor will develop with the clear objective of providing adequate protection of the rights and freedoms of the data subjects whose data is being processed. This has not occurred in the relationships governing SCHOOL FITNESS and HOLIDAY FIT TRES CANTOS regarding the recording and publication of images and videos of gym clients on the website and social media to promote the commercial brand.

Therefore, in accordance with the evidence available at this time in the initiation agreement of the sanctioning procedure, it is considered that the known facts could constitute an infringement attributable to SCHOOL FITNESS for violation of Article 28 of the GDPR.

XI

Classification of the infringement of Article 28 of the GDPR and qualification for the purposes of limitation

Article 83.4 of the GDPR classifies the violation of the following articles as an administrative infringement, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) "the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43;"

For its part, the LOPDGDD in its Article 71, Infringements, states: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the sole purposes of the limitation period, Article 73 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and will prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) Entrusting the processing of data to a third party without the prior formalization of a contract or other written legal act with the content required by Article 28.3 of Regulation (EU) 2016/679."

XII

Proposal for sanction for the infringement of Article 28 of the GDPR

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for infringements of this Regulation is effective, proportionate, and dissuasive."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Regulation indicated in sections 4, 9, and 6 shall be effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, section 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, considering the technical or organizational measures they have applied pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, section 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in section 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) To have, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, considering the severity of the possible infringements, particularly the consequences that their commission causes to the affected parties, the imposition of a fine would be appropriate.

The fine imposed must be, in each individual case, effective, proportionate, and deterrent, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of SCHOOL FITNESS of €978,207 in the year 2023 is considered as a preliminary factor.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to scale the sanction to be imposed according to the following circumstances, as contemplated in the aforementioned provisions.

As a preliminary matter, it is estimated that the following circumstances are present:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the data processing operation in question, as well as the number of affected interested parties and the level of damage and harm they have suffered (Article 83.2, letter a), of the GDPR): In this case, the infringement committed is notably severe, as it would affect the clients of HOLIDAY FIT TRES CANTOS who appeared in the images and videos that this gym sent to SCHOOL FITNESS, up to the present time.

Additionally, the following aggravating factors are considered:

- The connection of the infringer's activity with the processing of personal data (Article 76.2, letter b), of the LOPDGDD): SCHOOL FITNESS is the parent company of a group of companies dedicated to gym activities that, to carry out its activity, requires continuous processing of personal data. SCHOOL FITNESS, as a result of its business activity, habitually and continuously processes personal data of a large number of interested parties, which necessarily involves operations of personal data processing of the physical persons who are clients. Thus, the infringement occurs within the framework of personal data processing, in this case, consisting of the recording and publication of images and videos for the purpose of promoting the commercial brand, which it regularly carries out.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for an initial administrative fine of €6,000 (six thousand euros) to be set.

XIII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Articles 6.1 of the GDPR, 5.1.e) of the GDPR, and 28 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the presumed infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, the resolution adopted may require SCHOOL FITNESS to adopt the following measures within 6 MONTHS from the date of the enforceability of the resolution concluding this procedure:

- To demonstrate the adoption of measures that ensure that the recording and publication of images and videos of the clients of HOLIDAY FIT TRES CANTOS is carried out with an adequate legal basis, and to delete the content that has been subject to this processing operation without having such a legal basis.
- To demonstrate the adoption of the necessary measures to ensure compliance with the provisions of

Article 5.1.e) of the GDPR.

40/45

-

To certify the execution of the corresponding data processing agreement with HOLIDAY FIT TRES CANTOS, S.L.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with any possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, if applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to certify compliance with this obligation before this AEPD.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L., with NIF B82887514, for:

- The alleged infringement of Article 7 of the GDPR, classified in Article 83.5 of the GDPR.
- The alleged infringement of Article 5.1.e) of the GDPR, classified in Article 83.5 of the GDPR.
- The alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT D.D.D. as instructor and E.E.E. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

- For the alleged infringement of Article 7 of the GDPR, classified in Article 83.5 of the GDPR, an administrative fine of €15,000 (fifteen thousand euros).
- For the alleged infringement of Article 5.1.e) of the GDPR, classified in Article 83.5 of the GDPR, an administrative fine of €15,000 (fifteen thousand euros).
- For the alleged infringement of Article 28 of the GDPR, classified in Article 83.4 of the GDPR, an administrative fine of €6,000 (six thousand euros).

FIFTH: TO NOTIFY this agreement to SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L., with NIF B82887514, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be established at €28,800 (twenty-eight thousand eight hundred euros), resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make the voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at €28,800 (twenty-eight thousand eight hundred euros), and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to the one corresponding to the

acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be established at €21,600 (twenty-one thousand six hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (€28,800 or €21,600), it must do so by depositing it into account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the number of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

42/45

reference of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it adheres.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount paid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

1479-290125

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy position.

>>

SECOND: On March 11, 2025, SCHOOL FITNESS proceeded to pay the sanction in the amount of 21,600.00 euros making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: In the initiation agreement transcribed above, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

43/45

Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 21,600.00 euros and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, SCHOOL FITNESS has proceeded to acknowledge responsibility and to make voluntary payment of the sanction, availing itself of the two reductions provided for. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

44/45

It should be noted that, in accordance with the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the commission of the infractions and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 36,000.00 euros.

After SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, pursuant to Article 85 of the LPACAP, which results in a final amount of 21,600.00 euros.

The effectiveness of the aforementioned reductions is conditioned, in any case, on the withdrawal or waiver of any action or appeal in the administrative process.

SECOND: TO DECLARE the termination of procedure EXP202309454, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L. to notify the Agency within 6 months from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to SCHOOL FITNESS HOLIDAY & FRANCHISING, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or waiver of any action or appeal in the administrative process, this resolution will be final in the administrative process and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

1259-260325

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es